

File No.: EXP202202950

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings conducted by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 14, 2022, A.A.A., with N.I.F. no. ***NIF.1, filed a complaint with the Spanish Agency for Data Protection against CASAS ASESORES CONSULTING INTEGRAL DE EMPRESAS, S.L.P. with NIF B51009363 (hereinafter, CASAS ASESORES). The reasons for the complaint are as follows:

“On May 21, 2021, I was dismissed from the company CASAS ASESORES CIE, S.L.P., and the communication of this was delivered to me by a notary through a deed. The company for which I provided services has sent this communication via email to other employees of the company and to employees who worked in the same office but were hired by another company. I understand that my rights are being violated since this communication contains private information that should not be known by third parties.”

Attached is an image of an email sent by ***EMAIL.1 addressed to “B.B.B.” (***EMAIL.2) and copied to various recipients: ***EMAIL.3; ***EMAIL.4; ***EMAIL.5. The subject of the email states “Communication” and in the attachments section, it reads “4 dismissal and suspension letter A.A.A.; attached conciliation.pdf.”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the accused party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the provisions of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, was not acknowledged by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on March 26, 2022, as stated in the certificate in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, for informational purposes, the transfer and request for information was reiterated, being notified on October 15, 2022.

THIRD: On May 14, 2022, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

The following entity has been investigated:

CASAS ASESORES CONSULTING INTEGRAL DE EMPRESAS, S.L.P. with NIF B51009363 located at C/ ***DIRECCIÓN.1)

On June 13, 2022, a request for additional information was sent to the complainant, requiring an electronic copy of the email that includes the attached file where the private information that has been disseminated to third parties appears.

On June 27, 2022, a response was received from the complainant at this Agency. This response includes the same document in pdf format that was submitted in the original complaint, which shows only part of the electronic communication. The complainant did not send this Agency the attached document that has been disseminated to third parties.

On June 27, 2022, an email was sent to the complainant explaining that the request for additional

information refers to the attachments to the email that would prove that the information was disseminated to outsiders, possibly integrated within the email message sent (file with .msg, .eml or similar extension).

On June 27, 2022, the request for additional information was reiterated, specifying that for any clarification, the complainant can contact via email with the inspector studying the case.

The second request for additional information has not been answered, having been accepted for electronic notification on June 27, 2022.

FIFTH: On November 2, 2011, a document was submitted by D^a C.C.C., on behalf of CASAS ASESORES CONSULTING INTEGRAL DE EMPRESAS, S.L.P., in response to the transfer and request for information in which it states that the company against which the complainant has filed the complaint is not CASAS ASESORES, but rather D.D.D., with DNI ***NIF.2, registered as a natural person and who had employees on payroll, who practiced as a lawyer in the same office as the company CASAS ASESORES.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/5

It indicates that the termination letter was notified to her via email (to ***EMAIL.2) as the administrator and partner with 20% of CASAS ASESORES and with a copy to email addresses belonging to workers contracted by D.D.D., so CASAS ASESORES has not disclosed data regarding the contractual situation or the termination to any other person, and therefore it is not the responsibility of CASAS ASESORES that another person - D.D.D. - discloses data of one of its employees to other workers also contracted by her.

It accompanies a copy of a signed declaration from the claimant in which she states the following:

"That the complaint filed with the Spanish Agency for Data Protection, with registration number ***REGISTRO.1 regarding the disclosure of my data by Ms. D.D.D. with ID ***NIF.2 and with a business address at Cl. ***DIRECCIÓN.1, has been to her own employees as a natural person... having no relation whatsoever the complaint with the company CASAS ASESORES CONSULTING INTEGRAL DE EMPRESAS, S.L.P. with CIF B51009363.

A complaint was filed against D.D.D. as a natural person and email ***EMAIL.6 for sending the communication of my termination to employees of her own company as a natural person, as those employees have no relation to CASAS ASESORES and do have a relation to D.D.D."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 5.1.f)

Within the principles of processing provided in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in section 1.f) of Article 5 of the GDPR, which advocates:

"1. Personal data shall be:

C/ Jorge Juan, 6

www.aepd.es

f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by means of appropriate technical or organizational measures ('integrity and confidentiality')." However, from the actions carried out and the documentation in the file, it has not been proven that the disseminated email contains the information indicated by the claimant.

Thus, the claimant provided the email in PDF format, making it impossible to access the attached documentation that contains the information related to the communication of the termination. After being requested by this Agency for an electronic copy of the email that included the attached file where the private information she claims has been disseminated to third parties appears, the claimant presented the email again in PDF format. After the request was reiterated, no response has been obtained.

Therefore, it has not been possible to access the attachments to the email that would prove that the information was disseminated, so there is no evidence that supports the disclosure or communication to third parties of the information that the claimant claims has occurred.

For this reason, it is not relevant to evaluate against whom the complaint was actually directed.

However, the claimant has the possibility to file a new complaint if she believes that a violation of her rights has occurred, to which she should attach any supporting documents she may have.

Finally, it should be noted that there are no other similar complaints recorded with this Agency, except for the one that has given rise to this file.

III

Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to CASAS ASESORES CONSULTING INTEGRAL DE EMPRESAS, S.L.P. and to the complaining party.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions established in Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es